

Court No. - 37

Case :- WRIT - C No. - 7902 of 2020

Petitioner :- Vinayak Cold Storage

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajay Vikram Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Shamim Ahmed,J.

By means of this writ petition the petitioner has challenged the demand notice dated 9.8.2019 issued for a sum of Rs. 14,11,934/- as electricity dues. The petitioner accepts the liability, however, it wants that it may be allowed to pay the same in installments.

For the aforesaid purpose the petitioner has to approach the Executive who will consider the claim of the petitioner under Clause 6.14 of the Electricity Supply Code, 2005 for fixing installments for recovery of the dues.

The writ petition is disposed of with the observation that the petitioner will apply before the Executive Engineer within one week from today along with a certified copy of this order and within three weeks thereafter the Executive Engineer will decide the claim of the petitioner. The demand notice dated 19.8.2019 shall be subject to final decision of the Executive Engineer.

Order Date :- 3.3.2020

Sunil Kr. Gupta

(Shamim Ahmed, J.) (Abhinava Upadhya, J.)